

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: July 23, 2026

#	Case Name	Tentative
3.	30-2025-01479293 Dalton vs. Ford Motor Company	1. Motion to Strike or Tax Costs Defendant Ford Motor Company (“Ford”) moves to strike or tax costs in plaintiff Evan E. Dalton’s (“Plaintiff”) Memorandum of Costs filed on May 27, 2026. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) Items not mentioned in section 1033.5 may be allowed or denied in the court’s discretion. (Code Civ. Proc., § 1033.5(c)(4).) “If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the plaintiff.” (<i>Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co.</i> (1963) 217 Cal.App.2d 678, 698.) “The court’s first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation.] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131.) Ford seeks to tax the \$1,709.50 in deposition costs for Ford’s corporate representative, Eric Kalis. Costs incurred in taking, video recording, and transcribing necessary depositions are recoverable. (Code Civ. Proc., § 1033.5(a)(3)(A).) Ford argues this deposition was not reasonably necessary and was instead designed solely to increase fees and costs. However, Ford has not presented any evidence in support of its argument and therefore has not met its burden to show the cost to be unnecessary or unreasonable. Thus, the Motion to Tax as to Item 4 is DENIED. Ford seeks to tax the \$75.00 under Item 15 incurred for court appearance professionals, arguing that it is not appropriate to have appearance attorneys who lack personal knowledge to handle court hearings and, even so, fees for appearance attorneys are attorney fees, not costs. This item does not fall within any of the enumerated categories in section 1033.5. However, as Plaintiff points out, attendance at court hearings is not optional and if counsel is unable to attend, a fee for an appearance attorney is reasonably incurred. Thus, the Motion to Tax as to Item 15 is also DENIED. Moving party to give notice.

4.	30-2025-01535598 Lorn vs. Paramount Convalescent Group, Inc	1. Case Management Conference 2. Motion for Order to Stay Proceedings Paramount Convalescent Group, Inc., Sun Mar Management Services, and Frank Johnson (“Defendants”) move for a stay of this action filed by plaintiff Ratany Lorn (“Lorn”) for wrongful death. This action arises out of the death of decedent Mary Noeun Tep (“Tep”). The Court has ordered arbitration in related action <i>Mary Noeun Tep, by and through her Successor in Interest, Ratany Lorn v. Paramount Convalescent Group, Inc., et al.</i>, Orange County Superior Court Case No. 30-2025 01453794-CU-NP-CJC (the “Tep Action”). The Tep Action is brought by Tep through Lorn, her Successor in Interest, and asserts causes of action for elder abuse and negligence against the same Defendants here. The Tep Action alleges that Tep was a resident of Defendants’ facility from November 16, 2023 through June 2024 during which time Defendants failed to exercise the degree of care that reasonable skilled nursing facility owners would have exercised. As a result, Tep suffered a fractured tibia and fibula from preventable falls. Defendants also failed to provide medical services to Tep’s surgical wound, resulting in an infection. It further alleges that the neglect and abuse arose out of Defendants’ business practices of understaffing and recruiting heavier care residents to receive higher reimbursements. In the instant action, Lorn asserts a cause of action for wrongful death against the same Defendants. As in the Tep Action, Lorn alleges that Defendants neglected Tep while she was in their care and failed to exercise the degree of care that reasonable skilled nursing facility owners would have exercised. Lorn alleges that as a result of the neglect, Tep suffered injuries such as a fractured tibia and fibula from preventable falls as well as an infection to her surgical wound. This action also makes the identical allegations that Defendants’ conduct of understaffing and recruiting heavier care residents resulted in Tep’s injuries. Defendants now seek to stay the instant action pending resolution of that arbitration on the grounds that the overlap between the two actions is substantial. Defendants contend that the arbitrator will decide core questions about Defendants’ liability in connection with the alleged breaches of duty in the provision of skilled nursing care, and causation of the Tep’s injuries and death, and those issues that sit at the center of the wrongful death claim in this case. Code of Civil Procedure section 1281.4 provides, in relevant part: If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. “Any party to a judicial proceeding ‘is entitled to a stay of those proceedings whenever (1) the arbitration of a controversy has been ordered, and (2) that controversy is also an issue involved in the pending judicial action.’ ” (<i>Heritage Provider Network, Inc. v. Superior Court</i> (2008) 158 Cal.App.4th 1146, 1152.) “ ‘The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved.’ [Citation.] ‘In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.’ ” (<i>Ibid.</i>) “A controversy can be a single question of law or fact, and a stay <i>shall</i> be issued upon proper motion if the court has ordered arbitration of a controversy that is also an issue involved in an action or proceeding pending before it.” (<i>Id.</i> at pp. 1152-
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1153.) “Thus, a single overlapping issue is sufficient to require imposition of a stay.” (*Id.* at p. 1153.)

Here, these actions are premised on the same alleged abuse and neglect and involve numerous core overlapping issues regarding the care and treatment provided to Tep by Defendants and whether that care and treatment contributed to Tep’s death. Lorn argues that a stay is unwarranted because the cases involve different plaintiffs. However, that is not relevant to the question of whether the Tep Action which has been ordered to arbitration involves an issue in the instant action.

Lorn further argues that a stay should not be imposed because one action seeks punitive and medical special damages while the other action seeks damages to Tep’s heirs. Lorn further points to the fact that the actions will involve different witnesses, as her testimony will not be required to support the elder abuse claim in the Tep Action. These arguments fail. A single overlapping issue is sufficient to warrant a mandatory stay under section 1281.4. Therefore, the fact that the claims for damages will involve different issues or the actions may warrant different witnesses does not preclude the imposition of a stay where there are other numerous other overlapping issues.

In light of the above, the Motion for Stay is **GRANTED**. This action is **ORDERED** stayed pending resolution of the arbitration in the Tep Action.

A **Status Conference** re: Status of Arbitration is set for **February 18, 2027 at 10:30 am in Department C34.**

Moving party to give notice.

6. 30-2025-01511420
**Gonzalez vs. Home &
Estates Investment, Inc**

- 1. Motion to Compel Answers to Form Interrogatories**
- 2. Motion to Compel Further Responses to Form Interrogatories**
- 3. Motion to Compel Further Responses to Form Interrogatories**

Plaintiff Hector Gonzalez (“Plaintiff”) moves to compel defendants Home and Estates Investment, Inc., Rodjach Investment Properties LLC, and Maricela Rodriguez (“Defendants”) to serve verified responses to Form Interrogatories, Set One, without objections and for an order imposing monetary sanctions against Defendants and their counsel for their failure to serve timely responses.

There is no dispute that Defendants have not provided substantive, verified responses to the Form Interrogatories. Thus, the Court finds that further responses are warranted. However, Plaintiff’s request that the responses be without objections is not. Defendants’ counsel served objection-only responses to preserve their objections. No verification by a party is required where the responses contain only objections. (Code Civ. Proc., § 2030.250(a).) *Thus, counsel has preserved Defendants’ objections.*

In light of the above, the Motions to Compel are **GRANTED**. Defendants are **ORDERED** to **serve further substantive responses to the Form Interrogatories, Set One, within 30 days.**

As to monetary sanctions, it was Defendants’ failure to stay in contact with their counsel that resulted in counsel being unable to serve substantive responses and there is no evidence that counsel’s conduct was dilatory or contributed to the failure. Thus, sanctions against counsel

		would be unjust. (Code Civ. Proc., § 2030.300(d).) Therefore, the Court awards Plaintiffs monetary sanctions against Defendants only in the amount of \$500.00 per Defendant. Sanctions to be paid within 30 days. Moving party to give notice.
7.	30-2024-01393434	1. Motion for Sanctions Kaufman vs. Martinez Plaintiff LEAH MICHELE KAUFMAN (“Moving party” or “MP”) seeks an order imposing sanctions pursuant to CCP §128.7 against counsel for Cross-Complainants ASHLEY GISEL MARTINEZ and JUAN MIGUEL MARTINEZ GARCIA and MARIA DEL PILAR TAVERA MEDINA specifically, Michael J. Cody, Esq. and Alex C. Macdonald, Esq. both of Macdonald & Cody, LLP; and Zaid Dean Hakkak, Esq. and Nushan Falatoonzadeh, Esq. of First Law Group-- in an amount to be determined by the Court but not less than \$5,783, which represents the amount in anticipated attorneys fees and costs which have been or will be incurred in addressing the Cross-Complaint and the subsequently filed, Motion for Leave to File a Cross-Complaint. <u>CCP§128.7</u> An attorney or unrepresented party who <i>presents</i> a pleading, motion or similar paper to the court makes an implied “certification” as to its legal and factual merit; and is subject to sanctions for violation of this certification. [CCP § 128.7; see <i>Murphy v. Yale Materials Handling Corp.</i> (1997) 54 CA4th 619, 623—statute inapplicable to pre-1995 cases] The purpose of the statute is “to check abuses in the filing of pleadings, petitions, written notices of motions or similar papers.” [<i>Musaelian v. Adams</i> (2009) 45 C4th 512, 514.] Sanctionable conduct under CCP § 128.7 is limited to “presenting” a “pleading, petition, written notice of motion, or other similar paper” to the court. [CCP § 128.7(b)] By “presenting” the papers to the court, an attorney or unrepresented party certifies that it has read the paper, and “to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances”: • <i>Proper purpose</i>: “It is not being <i>presented primarily for an improper purpose</i>, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation” (CCP § 128.7(b)(1) (emphasis added); • <i>Legal merit</i>: “The claims, defenses, and other legal contentions therein are <i>warranted by existing law</i> or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law” (CCP § 128.7(b)(2) (emphasis added); • <i>Evidentiary support</i>: “The allegations and other factual contentions have <i>evidentiary support</i> or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery” (CCP § 128.7(b)(3) (emphasis added)); and “The <i>denials</i> of factual contentions are <i>warranted on the evidence</i> or, if specifically so identified, are reasonably based on a lack of information or belief” (CCP § 128.7(b)(4) (emphasis added)). Violation of <i>any</i> of these certifications may give rise to sanctions. [<i>Eichenbaum v. Alon</i> (2003) 106 CA4th 967, 976, 131 CR2d 296, 302] In this instance, Moving Party appears to argue that the 4/6/2026 filing of the Cross-Complaint by Cross-Complainants ASHLEY GISEL MARTINEZ, MARIA DEL PILAR TAVERA

MEDINA, AND JUAN MIGUEL MARTINEZ GARCIA by Attorney Z. Dean Hakkak, Esq of the FIRST LAW GROUP was “duplicative and unnecessarily increases the cost of litigation in the instance case as well as the related case.” MP also complains that the subsequent filing of the Motion for Leave to file Cross-Complaint (on calendar for 10/15/2026) has created a tangled web of procedurally defective pleadings and motions.

Notably, it appears Cross-Complainants have been attempting to file a Cross-Complaint since 9/20/2024 (See ROA 24), but possibly because Plaintiff filed a “Motion to Vacate” that Motion (ROA 36), no Cross-Complaint was ever filed.

Subsequently, in order to preserve their rights to have their claims heard, it appears that ASHLEY GISEL MARTINEZ and MARIA DEL PILAR TAVERA MEDINA filed a Complaint (2025-01506656) on 8/25/2025 and filed a Notice of Related Case on 8/29/2025. There is a Motion to Consolidate these two cases on calendar for 10/15/2026.

Thereafter, on 3/3/2026 Plaintiff filed a First Amended Complaint. It looks like Defendants took this as an opportunity to file a Cross-Complaint, which they did on 4/6/2026. Notably, the Cross-Complaint was not rejected by the Court, and MP has not filed a Motion to Strike that pleading.

More importantly, it is undeniable that the Cross-Complaint is compulsory, arising from the *same transaction, occurrence, or series of transactions or occurrences* as the cause of action ... in [the] complaint.” [CCP § 426.10(c).]

Significant, too, at any time during the course of the lawsuit, the Court retains power to permit defendant to file or amend a cross-complaint to avoid forfeiture of defendant's “related” claim. Indeed, the court “shall grant” leave as long as defendant is acting in good faith. [CCP § 426.50; see *Silver Organizations Ltd. v. Frank* (1990) 217 CA3d 94, 98-99—even on “eve of trial,” leave to file compulsory cross-complaint mandatory absent bad faith]

Yet, again, not satisfied to simply allow Cross-Complainants to file a Cross-Complaint herein, Plaintiff’s counsel emailed counsel for Cross-Complainants on 4/10/2026, “regarding their failure to seek leave prior to filing the Cross-Complaint; and indicated that the Cross-Complaint unnecessarily duplicated the proceeding Ms. Talavera had already filed in the Related Action.” (Declaration of Leslie Keith Kaufman ¶7.)

Perhaps concerned that Attorney Kaufman’ was correct, on 5/15/2026 Cross-Complainants filed a Motion for Leave to File a Cross-Complaint which was set for hearing on 12/10/2026, but advanced pursuant to ex parte application to 10/15/2026.

Curiously, all this law and motion, procedural scrambling, and work (by all parties involved including the Court and its staff) could have been avoided had the parties simply agreed to either 1) the cases being consolidated or 2) allowing Cross-Defendants to file a Cross-Complaint.

While Cross-Complainants’ maneuvering may or may not have been procedurally defective, there is no basis for sanctions herein. Furthermore, Michael J. Cody, Esq. and Alex C. Macdonald, Esq. of Macdonald & Cody, LLP did not file the Cross-Complaint herein so the request for sanctions against these attorneys is further unwarranted.

Motion is **DENIED**.

		Taking this ruling into consideration, counsel is to meet and confer about the necessity of the Motion for Leave to File Cross-Complaint and Motion for Consolidation and Motion for Sanctions pursuant to CCP§128.5, and whether it is reasonable to allow the 4/6/2026 cross-complaint to stand (there being no motion to strike that document), and dismissing the related lawsuit. Responding Party to give notice.
8.	30-2022-01240154 Sanders vs. County of Orange	1. Motion for Summary Judgment and/or Adjudication Defendant COUNTY OF ORANGE, erroneously sued and served herein as ORANGE COUNTY DIVISION OF CHILDREN AND FAMILY SERVICES (the "County") seeks an order granting summary judgment, or in the alternative, summary adjudication as to each cause of action (27 issues) in Defendant's favor, as to Plaintiff CHARLES "DOUG" SANDERS' ("Plaintiff") Second Amended Complaint. Cal. Civ. Code Proc., §§ 473c, 473c(f)(1). By way of background, this case was initiated by Plaintiff filing the Complaint on 1/10/2022. Trial on this case was set for 3/2/2026. Motions in Limine were filed. On 2/26/2026 the Court continued trial to 4/16/2026. On 4/13/2026, the Plaintiff asked for leave to amend the complaint. Defendant also asked to file a motion for summary judgment. Because the case is approaching the 5 year mark, the parties orally stipulated that an MSJ could be filed and served on abbreviated notice. The minute order provided, in part: Moving papers for the Motion for Summary Judgment and/or Adjudication shall be served and filed no later than 06/01/2026. [ROA 448.] Despite the Court's clear order, Defendant did not file or serve the MSJ/SAI until 6/5/2026. Notably, 6/1 was a Monday and 6/5 was a Friday. Defendant provides no excuse for its untimeliness. Moreover, Defendant only filed its MSJ/SAI on that date and failed to file its separate statement or supporting evidence. As it appeared from the responding/opposition briefing that the separate statement and evidence <i>had</i> been served on the responding party, this prompted the Court to send a minute order on 7/14/2026 requesting filing of the missing documents. On 7/14/2026 Defendant filed the missing documents. (ROAS 478, 480.) Procedurally, the Defendant's papers are defective. <u>Notice of Motion:</u> Here, despite the SAC containing only five (5) causes of action, Defendant's Notice of Motion consists of <i>twenty-two (22) pages</i>. Indeed pages 2:11-4:15 of the Notice of Motion contains highly improper argument; and may be deemed as an attempt to violate page limits. CCP§1010 does not allow for argument in the notice of motion. <u>Notice of Motion and Separate Statement :</u>On a motion for summary adjudication, the separate statement must also tie each "undisputed material fact" to the particular claim, defense or issue sought to be adjudicated: "[T]he specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." [CRC 3.1350(b).]

Here, Defendant has violated the above rule. For example, in the Notice of Motion Defendant sets forth Issue 27 as:

ISSUE 27 - PLAINTIFF'S CLAIM BEING BROUGHT AGAINST THE COUNTY FOR VIOLATION OF THE BANE ACT CIVIL CODE § 51.2 HAS NO MERIT AND THERE IS NO GENUINE DISPUTE OF MATERIAL FACT.

However, in the Separate Statement (ROA 478), Defendant lists Issue 27 as:

ISSUE 27 – PLAINTIFF'S CLAIM BEING BROUGHT AGAINST THE COUNTY UNDER FAMILY SERVICES POLICY A-0401 HAS NO MERIT AND IS BARRED BECAUSE FAMILY SERVICES POLICY A-0401 DOES NOT PROVIDE FOR A MANDATORY DUTY OR THE COUNTY IS IMMUNE UNDER CAL. GOV'T CODE SECTION 820.2, 821.6 or 815.2

That is, the issue as set forth in the Notice of Motion was not repeated, verbatim, in the separate statement.

Separate Statement: Additionally, CRC, 3.1350(d)(3) requires that, "The separate statement must be in the two-column format specified in (h). The "statement must state in numerical sequence the undisputed material facts in the first column followed by the evidence that establishes those undisputed facts in that same column. **Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers.**"

Here, in the left-hand column of the separate statement, most of the supporting evidence in support of the material facts is case law, or the SAC; i.e., no evidence is mentioned.

Requested Relief: Where summary adjudication is sought, the notice must specify the "**specific cause of action**, affirmative defense, claims for damages, or **issues of duty**" sought to be adjudicated. [CRC 3.1350(b)]

Plus, CCP§437c(f)(1) provides, "A party may move for summary adjudication as to one or more **causes of action within an action**, one or more affirmative defenses, one or more claims for damages, **or one or more issues of duty**, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. **A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.** [Emphasis added.]

Here, a brief review of the Notice of Motion establishes that Defendant has not set forth what cause of action this Motion is directed to; nor has it established that it is seeking adjudication on an issue of duty.

For example, Issue 1 states:

"ISSUE 1: PLAINTIFF'S CLAIM AGAINST THE COUNTY FOR FAILING TO CROSS-REPORT THE INITIAL. FEBRUARY 14, 2020 CALL UNDER CALIFORNIA PENAL CODE SECTION 11164 THROUGH 11174.3, AND IN PARTICULAR, 11166(j) LACKS MERIT AS

NO TRIABLE ISSUE OF MATERIAL SACT [sic] EXISTS THAT THE COUNTY FAILED TO CROSS-REPORT A MANDATED REPORT OF SEXUAL ABUSE.”

What “claim” is Defendant referring to? Which of the five causes of action? Notably, the issue of “duty” is nowhere mentioned in the issue.

Curiously, of the five causes of action pled in the Second Amended Complaint [1) WRONGFUL DEATH; 2) WRONGFUL DEATH ; 3) WRONGFUL DEATH SOUNDING IN NEGLIGENCE ;4) VIOLATION OF CIVIL RIGHTS [Civil Code Section 52.1]; 5) SURVIVAL [Code of Civil Procedure Section 377.34]], the only cause of action that is mentioned in the Notice of Motion is in Issue 27 relating to the Bane Act (the 4th cause of action).

Points & Authorities: The memorandum of points and authorities “must contain a statement of facts, a **concise statement of the law**, evidence and arguments relied on, and a discussion of the statutes, cases and textbooks cited in support of the position advanced.” [CRC 3.1113(b); see *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 CA4th 927, 934—**trial court not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”.**]

Here, it appears the primary issue of the entire motion is that Defendant did not owe Plaintiff a mandatory duty.

However, the “III. Legal Standard” portion of the points and authorities, Defendant fails to mention why a mandatory duty in this situation matters. Rather, Defendant appears to have repeated argument from a prior demurrer, arguing, “Plaintiff must identify an authorizing statute with the SAC and specific facts as to how the County breached said statute and he cannot!” (Motion page 31:7-8.) Again, this is a motion for summary judgment, not a demurrer.

Defendant did not set forth the relevance of the Government Torts Claim Act, what it takes to plead and *prove* a cause of action against the Government, and why Plaintiff cannot do so here.

Table of Authorities: CRC, Rule 3.1113(d) requires that, “A memorandum that exceeds 10 pages must include a table of contents and a table of authorities. A memorandum that exceeds 15 pages must also include an opening summary of argument.” Here, Defendant’s Table of Authorities was left blank.

Due to the multitude of procedural errors listed above, the motion is DENIED.

Furthermore, the Motion is DENIED on the merits, as well.

Given the above defects, the Court finds the only issues to be resolved by this motion are the following:

- Does Defendant owe Plaintiff a mandatory duty as to each cause of action?
- Is Defendant immune?
- Does the 4th cause of action lack merit?

Government Claims Act & Mandatory Duty

Govt Code §815.6 states, “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty

unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

In this instance, in the “General Allegations” of the Second Amended Complaint, Plaintiff pleads several “enactments” which provided mandatory duties for which Defendant allegedly breached. [See SAC¶¶9-38.] These general allegations, and thus the enactments, **are incorporated into each cause of action in the SAC.**

One of the enactments, Pen. Code, § 11165.9, states:

Reports of suspected child abuse or neglect shall be made by mandated reporters, or in the case of reports pursuant to Section 11166.05, may be made, to any police department or sheriff's department, not including a school district police or security department, county probation department, if designated by the county to receive mandated reports, or the county welfare department. Any of those agencies shall accept a report of suspected child abuse or neglect whether offered by a mandated reporter or another person, or referred by another agency, even if the agency to whom the report is being made lacks subject matter or geographical jurisdiction to investigate the reported case, unless the agency can immediately electronically transfer the call to an agency with proper jurisdiction. When an agency takes a report about a case of suspected child abuse or neglect in which that agency lacks jurisdiction, the agency shall immediately refer the case by telephone, fax, or electronic transmission to an agency with proper jurisdiction. Agencies that are required to receive reports of suspected child abuse or neglect may not refuse to accept a report of suspected child abuse or neglect from a mandated reporter or another person unless otherwise authorized pursuant to this section, and shall maintain a record of all reports received.

Another, Ca Penal Code§11166(j), provides:

(j)(1) A county probation or welfare department **shall** immediately, or as soon as practicably possible, report by telephone, fax, or electronic transmission to the law enforcement agency having jurisdiction over the case, to the agency given the responsibility for investigation of cases under Section 300 of the Welfare and Institutions Code, **and to the district attorney's office every known or reasonably suspected instance of child abuse** or neglect, as defined in Section 11165.6, except acts or omissions coming within subdivision (b) of Section 11165.2, or reports made pursuant to Section 11165.13 based on risk to a child that relates solely to the inability of the parent to provide the child with regular care due to the parent's substance abuse, which shall be reported only to the county welfare or probation department. A county probation or welfare department also shall send by fax or electronic transmission a written report thereof within 36 hours of receiving the information concerning the incident to any agency to which it makes a telephone report under this subdivision.

It is abundantly clear that Plaintiff has pled that Defendant had a mandatory duty, and case law supports that position.

In *Holman*, the Court explained:

The Supreme Court additionally held that **the determination of whether a reported incident involves child abuse or neglect is a mandatory, not a discretionary, function.** It explained: “The term ‘child abuse or neglect’ is clearly defined. [Citations.] Although in some instances it may require the exercise of judgment to identify whether a

report involves child abuse or neglect, *such a determination does not involve the exercise of discretion*. Deciding if conduct falls into a defined category does not require the consideration of a host of potentially competing factors that is the hallmark of discretion.” (*B.H. v. County of San Bernardino*, (2015) 62 Cal.4th 168, 181, italics added; see *Barner v. Leeds* (2000) 24 Cal.4th 676, 684-685 [not all acts requiring a public employee to choose among alternatives entail the use of discretion].)

The California Supreme Court found further support for its conclusion in the legislative history of CANRA, noting that it reflects a legislative intent “to rectify the problem of inadequate child abuse reporting by **mandating [reciprocal] cross-reporting between law enforcement and child welfare agencies.**” (*San Bernardino, supra*, 62 Cal.4th at p. 183.) The court quoted committee hearing testimony that the legislation was intended to require “ ‘alternative reporting in the sense that ... if the police gets the report first, ... they immediately advise [child welfare services], and vice [v]ersa. If [child welfare services] gets it, they immediately advise the police.’ ” (*Ibid.*) The court also quoted with approval the following passage from *Planned Parenthood, supra*, 181 Cal.App.3d at pages 259-260: “ ‘**The child protective agency receiving the initial report must share the report with all its counterpart child protective agencies by means of a system of cross-reporting. An initial report to a probation or welfare department is shared with the local police or sheriff's department, and vice versa.**’ ” (*Id.* at p. 183, 195 Cal.Rptr.3d 220.)

[*Holman v. County of Butte* (2025) 111 Cal.App.5th 177, 195, review denied (Aug. 27, 2025).]

In the SAC, Plaintiff pleads:

10. Defendants breached these mandatory duties by failing to properly document, forward, and/or cross-report the reports of abuse received on or about February 14, 2020, February 26, 2020, and November 12, 2020, including, among other things, failing to transmit the required written cross-reports within 36 hours and failing to notify the appropriate agencies, in violation of Penal Code sections 11165.9 and 11166(j), and all other applicable cross reporting statutes.

As such, to the extent Defendant is asserting it owed no mandatory duty to Plaintiff, that position fails.

Furthermore, there are triable issue of material facts. See for example, ROA 471 Nos. 7, 9,10, 21, 23, etc.

Indeed, Plaintiff’s Ex.T is the Supplemental Declaration of Dr. Nicol Stolar-Peterson (licensed clinical social worker), who declares that the three instances of reporting all triggered a duty to cross-report which Defendant failed to do. See Dec. of Stolar-Peterson¶¶7-9.

Therefore, there is a mandatory duty pled which supports the causes of action herein and triable issues of material fact as to whether Defendant complied with the duty.

Immunity

At page 41 of the Motion, Defendant argues, “The Court can skip the analysis of mandatory duty and jump straight to immunity and find the County is entitled to immunity under Cal Gov’t Code section 820.2 as to all claims raised in MSA nos. 4- 26.” [Note: While Defendant refers to Govt Code§ 821.6 in the *conclusion* of the motion, it fails to otherwise analyze the code section or sustain its burden in the points & authorities.]

Ca Gov. Code, § 820.2 provides:

Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.

Ca Govt Code § 815.2 provides:

(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.

In support of its position, Defendant cites to *K.C. v. County of Merced*, 109 Cal.App.5th 606 (2025). In *K.C.*, a former foster care recipient brought action against county alleging that negligent acts and/or omissions of social workers proximately caused childhood sexual assault in foster homes that resulted in her injuries. The trial court sustained the demurrer without leave to amend. The Court of Appeal held that discretionary immunity and derivative public entity employer immunity applied to social workers' decisions **regarding recipient's reports** of abuse in foster homes. Court of Appeal's order was Affirmed. Significantly in the Complaint, the litigant pled that she reported the sexual abuse and/or assault to her social worker and no corrective action was taken. [Id. ¶ 614.]

However, as addressed in the analysis above, the cross-reporting duty pled here is ministerial and involves no discretion at all.

Furthermore, this case does not involve a social worker's failure to investigate and re-place a foster child. Rather, this case involves three separate reports, an initiation of an investigation, but failure to cross-report, etc. As stated by the CA Supreme Court in *Barner v. Leeds* (2000) 24 Cal.4th 676, 686, "Our decisions also have stated that a public employee's initial decision whether to provide professional services to an individual might involve the exercise of discretion pursuant to section 820.2, but that **once the employee undertakes to render such services, he or she is not immune for the negligent performance of professional duties that do not amount to policy or planning decisions.**"

Here, arguably, after Defendant took on the duty to investigate it failed to cross-report to the district attorney, or properly review subsequent reports after the initial report was made. [See Declaration of Stolar-Peterson ¶¶ 5-12.]

As such, there are triable issues of material fact as to the issue of immunity.

The 4th cause of action for VIOLATION OF CIVIL RIGHTS [Civil Code Section 52.1]

"The Bane Act civilly protects individuals from conduct aimed at interfering with rights that are secured by federal or state law, where the interference is carried out 'by threats, intimidation, or coercion.'" (*Reese v. City of Sacramento* (9th Cir. 2018) 888 F.3d 1030, 1040; Civ. Code § 52.1 (a). "Section 52.1 'provides a cause of action for violations of a plaintiff's state or federal civil rights committed by 'threats, intimidation, or coercion.'" (*Reese*, 888 F.3d at 1040, quoting *Chaudry v. City of Los Angeles* (9th Cir. 2014) 751 F.3d 1096, 1105.) Section 52.1 does not

provide any substantive protections; instead, it enables individuals to sue for damages as a result of constitutional violations.

In *Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268 (a 4th/3rd case) our court of appeal stated:

“The Bane Act and related statutes ‘are California’s response to [the] alarming increase in hate crimes.’ ... Civil Code section 52.1 provides that a person may bring a cause of action ‘in his or her own name and on his or her own behalf’ against anyone who ‘interferes by threats, intimidation or coercion, with the exercise or enjoyment’ of any constitutional or statutory right.” (*Bay Area Rapid Transit Dist. v. Superior Court* (1995) 38 Cal.App.4th 141, 144, 44 Cal.Rptr.2d 887.) “[T]o state a cause of action under section 52.1 there must first be violence or intimidation by threat of violence. Second, the violence or threatened violence must be due to plaintiff’s membership in one of the specified classifications set forth in Civil Code section 51.7 or a group similarly protected by constitution or statute from hate crimes.” (*Cabesuela v. Browning-Ferris Industries of California, Inc.* (1998) 68 Cal.App.4th 101, 111, 80 Cal.Rptr.2d 60.)

(*Id.* at 1290.)

In the 4th cause of action of the Second Amended Complaint, Plaintiff pleads the following:

75. Plaintiff is informed and believes, and thereon alleges, that Defendants, and each of them, including DOES 1 through 20, violated Hannah’s and Plaintiff’s civil rights.

76. During all times mentioned herein, Defendants, separately and in concert, acted under color and pretense of law, under color of the statutes, ordinances, regulations, policies, practices, customs, and usages of the State of California and County of Orange. Each of the Defendants, separately and in concert, deprived minor Plaintiff and Hannah of the rights and privileges secured to them by the Civil Code as alleged herein.

77. Plaintiff and Hannah were subjected to the deprivations alleged herein as a result of the failure of Defendants to properly train their employees or agents.

Defendant argues Plaintiff has not alleged or provided any evidence that the County or its employees violated the constitution, let alone committed physical acts against him, let alone violent acts.

Unfortunately, Defendant has not sustained its initial substantive burden to establish one or more elements of the cause of action cannot be established.

[CCP § 437c(p)(2).]

Defendant is arguing that Plaintiff has no evidence to support this cause of action. However, in order to make this argument, Defendant itself must present *evidence* that plaintiff “does not possess and *cannot reasonably obtain*, needed evidence.” [*Aguilar v. Atlantic Richfield Co.* (2001) 25 C4th 826, 854.] Defendant must support its motion with discovery admissions or other admissible evidence showing that “plaintiff does not possess, and cannot reasonably obtain, needed evidence.” [*Id.*]

It is not enough for defendant to show merely that plaintiff “has no evidence” on a key element of plaintiff’s claim. Defendant must also produce evidence showing plaintiff *cannot reasonably obtain* evidence to support that claim. [*Gaggero v. Yura* (2003) 108 CA4th 884, 891; *Zoran Corp. v. Chen* (2010) 185 CA4th 799, 808.]

		Here, the Defendant cites to no evidence and does not direct the court to any undisputed material fact in support of its argument. Indeed, there is no separately identified Issue relating to this cause of action in the separate statement <i>at all, let alone reference to evidence or lack thereof.</i> So, while this cause of action may not be viable, Defendant failed to sustain its burden; and thus, the burden does not shift to Plaintiff to create a triable issue of material fact. Accordingly, based on applicable law and as set forth herein, the Motion is DENIED. (ROA 465) <i>Plaintiff's Objections</i> 1-6 are sustained. Plaintiff to give notice.
9.	30-2024-01416847 Qui vs. Catherine Frandsen & Co. Inc.	1. Motion for Judgment on the Pleadings 2. Motion for Leave to File Amended Complaint 3. Motion to Strike Portions of Complaint <u>Motion for Leave to File Amended Complaint</u> Plaintiffs Tina Qiu, Angelina Liu, Rose Wang and Amy Xiao's Motion for Leave to File a Third Amended Complaint is GRANTED pursuant to Code of Civil Procedure section 473. "[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." (<i>Melican v. Regents of University of California</i> (2007) 151 Cal.App.4th 168, 175.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings." (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (<i>Ibid.</i>) While there is authority which indicates that "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may – of itself – be a valid reason for denial" (<i>Eng v. Brown</i> (2018) 21 Cal.App.5th 675, 707), a great deal of authority demonstrates that "[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails." (<i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564.) Additionally, "[i]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (<i>Berman v. Bromberg</i> (1997) 56 Cal.App.4th 936, 945; see also <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Here, Plaintiffs seek leave to amend to identify two Doe Defendants by name (although Doe Amendments have already been filed, and both additional Defendants are thus already named parties); to add related causes of action for unsafe working conditions, FEHA retaliation, unreimbursed business expenses, inaccurate wage statements, waiting time penalties, and unfair competition under Business and Professions Code section 17200; and to clarify and expand various allegations. Plaintiffs' counsel has supplied a declaration explaining that the facts giving rise to the proposed amendments were discovered and/or clarified after the filing of the Second Amended Complaint through investigation, review of case materials, written discovery, deposition testimony, and further analysis of Plaintiffs' wage-and-hour, FEHA, tort, retaliation, ratification, and damages theories. (Elorm Decl. ¶ 14.) Further, Plaintiffs seek leave to amend now because Defendant has

filed a motion for judgment on the pleadings and refused to stipulate to an amendment. (Elorm Decl. ¶ 16.)

In opposition, Defendant contends that it will be prejudiced by the amendment because the case has been pending for nearly two years, and Plaintiffs now seek to add two new defendants, seven additional causes of action, and additional factual allegations. Defendant contends that allowing the amendment will result in Defendant filing a demurrer, and possibly result in delaying the trial date; and Defendant will have to incur further expenses for discovery.

The Court notes that there is a pending motion for judgment on the pleadings to be heard on the same date as this motion. In support of that motion, Defendant's counsel submits a declaration indicating that Plaintiffs filed the Second Amended Complaint on April 8, 2025, and that "[a]lthough Plaintiffs' Second Amended Complaint still included the same deficiencies as the First Amended Complaint, Defendant opted to answer the SAC and preserve its objections in the hope that a lack of motion practice might lead to an early resolution of the case." (ROA 150, Vakhshoury Decl. ¶ 7.) Defendant did not file its motion for judgment on the pleadings until April 2, 2026. (ROA 150.) Thus, Defendant made a calculated decision not to challenge the pleading for nearly a full year. As a result, the case is not yet fully at issue.

Further, having reviewed the proposed Third Amended Complaint, the Court finds that the proposed additional facts, Defendants, and causes of action are so related to the allegations already pled that the additional discovery required should not be excessive. Plaintiffs should be afforded the opportunity to have all of these related grievances heard in one action. Additionally, trial is nearly eight months away, so there should be sufficient time for Defendant to adequately prepare.

Motion for Judgment on the Pleadings & Motion to Strike

In light of this Court's ruling granting Plaintiffs' motion for leave to file a Third Amended Complaint, Defendants' Motion for Judgment on the Pleadings and Motion to Strike Portions of the Second Amended Complaint are **DENIED as MOOT**.

Plaintiffs to give notice.